

AMENDMENTS TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on December 13, 2011, and January 24, 2012,
effective on July 1, 2012

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13		

1 **Rule 2.117. Conformed copies of papers**

2
3 All copies of papers served must conform to the original papers filed, including the
4 numbering of lines, pagination, additions, deletions, and interlineations except that, with
5 the agreement of the other party, a party may serve that other party with papers printed on
6 both sides of the page.

7
8 *Rule 2.117 amended effective July 1, 2012; adopted effective January 1, 2007.*
9

10
11 **Rule 2.300 Application**

12
13 **(a) Proceedings to which rules apply**

14
15 The rules in this chapter apply to civil, probate, and family law proceedings in all
16 trial courts. Rule 5.386 applies to fax filing of a protective order issued by a tribal
17 court. Rule 5.522 applies to fax filing in juvenile law proceedings.

18
19 *(Subd (a) amended effective July 1, 2012; adopted as part of unlettered subd effective*
20 *March 1, 1992; previously amended and lettered effective January 1, 2007.)*
21

22 **(b) *****

23
24 *Rule 2.300 amended effective July 1, 2012; adopted as rule 2002 effective March 1, 1992;*
25 *previously amended effective January 1, 1999; previously amended and renumbered effective*
26 *January 1, 2007.*
27

28 **Rule 5.92. Request for court order; response**

29
30 **(a) Request for order; procedures**

31
32 (1) In a family law proceeding other than an action under the Domestic Violence
33 Prevention Act or a local child support agency action under the Family Code,
34 a notice of motion or order to show cause must be filed on a *Request for*
35 *Order* (form FL-300), unless another Judicial Council form has been adopted
36 or approved for the specific motion or order to show cause.

37
38 (2) In an action under the Domestic Violence Prevention Act, a notice of motion
39 or order to show cause to modify existing orders that were entered after a
40 hearing may be filed on a *Request for Order* (form FL-300).
41

- 1 (3) In a local child support action under the Family Code, a notice of motion or
2 order to show cause filed by any party other than the local child support
3 agency may be filed on a *Request for Order* (form FL-300).
4
5 (4) The *Request for Order* (form FL-300) must set forth facts sufficient to notify
6 the other party of the declarant's contentions in support of the relief
7 requested.
8
9 (5) A completed *Income and Expense Declaration* (form FL-150) or *Financial*
10 *Statement (Simplified)* (form FL-155) must be filed with the *Request for*
11 *Order* (form FL-300) when relevant to the relief requested unless a current
12 form is on file with the court.
13
14 (6) The moving party must file the documents with the court to obtain a court
15 date and then serve a copy on the responding party.
16
17 (A) If the request for order seeks court orders pending a hearing or seeks an
18 order that the other party attend the hearing, the *Request for Order*
19 (form FL-300) and appropriate attachments must be served in the
20 manner specified for the service of a summons in Code of Civil
21 Procedure section 413.10 et seq.
22
23 (B) If the *Request for Order* (form FL-300) is filed after entry of a
24 judgment of dissolution of marriage, nullity of marriage, legal
25 separation of the parties, or paternity, or after a permanent order in any
26 other proceeding in which the visitation, custody, or support of a child
27 was at issue, it must be served as specified in Family Code section 215.
28
29 (C) All other requests for order and appropriate attachments may be served
30 as specified in Code of Civil Procedure section 1010 et seq.
31
32 (7) The documents served must include a blank copy of the following:
33
34 (A) *Responsive Declaration to Request for Order* (form FL-320);
35
36 (B) *Income and Expense Declaration* (form FL-150) or *Financial*
37 *Statement (Simplified)* (form FL-155) when completed declarations are
38 among the papers required to be served.
39

40 **(b) Responding papers**
41

1 To respond to the issues raised in the *Request for Order* (form FL-300) and
2 attached papers, the responding party must complete, file, and serve a *Responsive*
3 *Declaration to Request for Order* (form FL-320).
4

5 (1) The *Responsive Declaration to Request for Order* (form FL-320) must set
6 forth facts sufficient to notify the other party of the declarant's contentions in
7 response to the request for order and in support of any relief requested.
8

9 (2) The responding papers may request relief related to the orders requested in
10 the moving papers. Unrelated relief must be sought by filing a separate
11 request for order as specified in (a).
12

13 (3) A completed *Income and Expense Declaration* (form FL-150) or *Financial*
14 *Statement (Simplified)* (form FL-155) must be attached to the *Responsive*
15 *Declaration to Request for Order* (form FL-320) when relevant to the relief
16 requested.
17

18 **(c) Memorandum of points and authorities**
19

20 No memorandum of points and authorities need be filed with a *Request for Order*
21 (form FL-300) or a *Responsive Declaration to Request for Order* (form FL-320)
22 unless required by the court on a case-by-case basis.
23

24 **(d) Additional documents**
25

26 As specified in these rules, the moving and responding parties may be required to
27 complete, file, and serve additional papers to request or respond to a *Request for*
28 *Order* (form FL-300) about child custody and visitation (parenting time), attorney
29 fees and costs, support, and other financial matters.
30

31 *Rule 5.92 adopted effective July 1, 2012.*
32

33 **Rule 5.93. Attorney's fees and costs**
34

35 **(a) *****
36

37 **(b) Request**
38

39 (1) Except as provided in Family Code section 2031(b), to request attorney's fees
40 and costs, a party must complete, file, and serve the following documents:
41

(A) Request for Order (form FL-300) ~~Application for Order (form FL-310)~~
attached to an ~~Order to Show Cause (form FL-300)~~ or a ~~Notice of~~
~~Motion (form FL-301)~~;

(B)–(E) ***

(2) ***

(Subd (b) amended effective July 1, 2012.)

(c) Response to request

To respond to the request for attorney’s fees and costs, a party must complete, file,
and serve the following documents:

(1) Responsive Declaration to Request for Order to Show Cause or Notice of
Motion (form FL-320);

(2)–(4) ***

(Subd (c) amended effective July 1, 2012.)

(d)–(e) ***

Rule 5.93 amended effective July 1, 2012; adopted effective January 1, 2012.

Rule 5.146. Judgment checklists

The Judgment Checklist—Dissolution/Legal Separation (form FL-182) lists the forms
that courts may require to complete a judgment based on default or uncontested judgment
in dissolution or legal separation cases based on a declaration under Family Code section
2336. The court may not require any additional forms or attachments.

Rule 5.146 adopted effective July 1, 2012.

Rule 5.147. Review of judgments based on default and uncontested judgments
submitted by declaration under Family Code section 2336

Once a valid proof of service of summons has been filed with the court or respondent has
made a general appearance in the case:

(a) Court review

1 The court must conduct a procedural review all the documents submitted for
2 judgment based on default or uncontested judgments submitted under Family Code
3 section 2336 and notify the attorneys or self-represented litigants who submitted
4 them of all identified defects.

5
6 **(b) Notice of errors and omissions**

7
8 Basic information for correction of the defects must be included in any notification
9 to attorneys or self-represented litigants made under (a).

10
11 *Rule 5.147 adopted effective July 1, 2012.*

12
13 **Rule 5.148. Default and uncontested hearings on judgments submitted on the basis**
14 **of declarations under Family Code section 2336**

15
16 The decision to hold a hearing in a case in which a judgment has been submitted on the
17 basis of a declaration under Family Code section 2336 should be made on a case-by-case
18 basis at the discretion of the court or request of a party. Courts must allow judgments in
19 default and uncontested cases to be submitted by declaration pursuant to section 2336 and
20 must not require that a hearing be conducted in all such cases.

21
22 *Rule 5.148 adopted effective July 1, 2012.*

23
24 **Rule 5.386. Procedures for filing a tribal court protective order**

25
26 **(a) Request for written procedures for filing a tribal court protective order**

27
28 At the request of any tribal court located within the county, a court must adopt a
29 written procedure or local rule to permit the fax or electronic filing of any tribal
30 court protective order that is entitled to be registered under Family Code section
31 6404.

32
33 **(b) Process for registration of order**

34
35 The written procedure or local rule developed in consultation with the local tribal
36 court or courts must provide a process for:

37
38 (1) The tribal court or courts to contact a representative of the superior court to
39 inform him or her that a request for registration of a tribal court protective
40 order will be made;

41
42 (2) Confirmation of receipt of the request for registration of the order; and
43

(3) Return of copies of the registered order to the tribal court or the protected person.

(c) No filing fee required

In accordance with Family Code section 6404(b), no fee may be charged for the fax or electronic filing registration of a tribal court protective order.

(d) Facsimile coversheet

The Fax Transmission Cover Sheet for Registration of Tribal Court Protective Order (form DV-610) or similar cover sheet established by written procedure or local rule must be used when fax filing a tribal court protective order. The cover sheet must be the first page transmitted, to be followed by any special handling instructions needed to ensure that the document will comply with local rules. Neither the cover sheet nor the special handling instructions are to be filed in the case. The court is not required to keep a copy of the cover sheet.

Rule 5.386 adopted effective July 1, 2012.

Rule 7.1015. Indian Child Welfare Act in guardianship and certain conservatorship proceedings

(a)–(c) ***

(d) Duty of inquiry

(1) ***

(2) Before filing his or her petition, the petitioner must ask the child involved in the proceeding, if the child is old enough, and the parents, ~~or~~ any other legal guardian, and any Indian custodian, whether the child is or may be an Indian child, and must complete items 1c and 8 of the Indian Child Inquiry Attachment (form ICWA-010(A)) Guardianship Petition—Child Information Attachment (form GC-210(CA)) and attach it to his or her petition.

(3)–(7) ***

(Subd (d) amended effective July 1, 2012.)

Rule 7.1015 amended effective July 1, 2012; adopted effective January 1, 2008.